

Unsafe Housing Authority

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=h2_i105iTD0
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Municipal Meeting Summary Report

Meeting: Unsafe Building Hearing Authority

Date: October 9, 2025

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer Courtney Walker called the meeting of the Unsafe Building Hearing Authority to order on October 9, 2025, noting that the statutory unsafe building law (IC 36-7-9) was entered into the record and that proper notification procedures (posting, certified mail, and publication in the *Star Press*) had been executed for all cases.
- **Attendance:**
 - **Members Present:** Gretchen Cheeseman, Mayor Dan Ridenour, James Heimck, and Jeff Green.
 - **City Staff Present:** Taylor Reed, Rebecca Moon, Melinda Coffee, Hannah Collins, Danny Han, Richard Rawlings (Administrators), Aubrey Christrist (City Attorney), and Courtney Walker (Recording Secretary).
 - **Presiding Officer:** Courtney Walker / Board leadership.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** All expected participants stood and were collectively sworn in under penalty of perjury regarding their testimony 00:02:11.
- **Approval of Minutes:** *Not explicitly addressed in the provided transcript segment.*

4. Substantive Business & Board Action

- **00:03:03 Demolition Order 14: 2020 South Elm Street**
 - **Sponsor / Presenter:** Landa Edwards (Representative, LK Future).
 - **Deliberation Summary:** Edwards reported a title/deed issue (requiring a quiet title action handled by attorney John Madison) which caused a lender to back out, delaying planned rehabilitation. Edwards requested a 90-day continuance to resolve title matters and finalize a business plan. Board members noted an outstanding Industrial Revolving Loan Fund balance, advising Edwards to speak with Matt Waggley in the Controller's office.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 90 days to January 8th).
- **00:08:35 Demolition Order 3: 401 North Eastwood Drive**
 - **Sponsor / Presenter:** Alisa Walton (Representative, Three-way Rental Solutions).
 - **Deliberation Summary:** Walton argued the property is well-manicured, fenced, and vacant. City staff presented photos showing heavy overgrowth and lack of maintenance. Walton stated financial hardship prevents immediate demolition, and noted a future intent to rebuild. Board members and staff noted the vacant structure poses public safety risks (squatters, fire hazards).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Affirmed demolition order and moved property to administrative enforcement without civil penalty).
- **00:21:03 Demolition Order 4: 2220 South Hoy Avenue**
 - **Sponsor / Presenter:** Fernando Morales (Property Owner).
 - **Deliberation Summary:** Morales stated they purchased the home as a side project last year and have made recent progress repairing the garage roof and interior walls since receiving notice. Staff confirmed visible progress.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Modified demolition order to a rehab order, ordered an inspection and necessary permit applications prior to the next hearing, and continued to November).
- **00:24:06 Demolition Order 5: 1617 South Madison Street**
 - **Sponsor / Presenter:** Jerry Miller (Property Owner).

- **Deliberation Summary:** Miller stated the house was previously rented for 10 years, suffered a kitchen fire (for which insurance was paid), and has recently been vacant with unauthorized occupants/squatters. Miller expressed a willingness to donate the property to the Muncie Land Bank or Muncie Redevelopment Commission rather than invest further funds.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Affirmed demolition order and continued for 30 days to review potential land bank or redevelopment options).
- **00:30:26 Rehab Order 7: 720 West Centennial Avenue**
 - **Sponsor / Presenter:** Lindsay Monroe (Former Tenant / Current Tenant at 10001 West Wayne Street).
 - **Deliberation Summary:** Monroe testified regarding severe habitability issues at the apartment complex managed by Middletown Living (formerly BK), including caving floors, black mold, leaks, and unresponsive management. Monroe is 16 weeks pregnant and had to pay out-of-pocket to relocate. Property management was not present. Board members discussed small claims options for the tenant and noted severe property deterioration.
 - **Item-Specific Public Input:** Lindsay Monroe testified regarding the dangerous conditions and lack of maintenance.
 - **Action & Vote Disposition:** Approved by Voice Vote (Affirmed rehab order, issued a \$5,000 civil penalty for failure to appear, and continued for 30 days).
- **00:38:18 Demolition Order 9: 1720 West 7th Street**
 - **Sponsor / Presenter:** Victoria Kenison (Property Owner).
 - **Deliberation Summary:** Kenison reported that two prospective buyers had backed out due to various circumstances, but the property remains listed below assessed value (\$9,900). The yard is maintained and the structure is boarded up. Kenison requested additional time to sell or prep for self-rehab.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 90 days to January).
- **00:43:42 Demolition Order 13: 710 West 11th Street**
 - **Sponsor / Presenter:** Jimmy Couch (Property Owner).
 - **Deliberation Summary:** Couch stated the previous tenant/co-owner (Kathleen Hunter) left the property. Couch reported cleaning up the yard and removing trash, and expressed intent to rehab the house for a family member. Board staff noted an inspection is required.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 30 days, ordering an inspection prior to the next hearing).
- **00:45:03 Demolition Order 15: 1421 East Highland Avenue**
 - **Sponsor / Presenter:** Carl Long (Property Owner).

- **Deliberation Summary:** Long reported having a prospective buyer who has partial funds and intends to bring the property up to code. Long requested 60 days.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 60 days to December).
- **00:48:10 Demolition Order 21: 923 South Pershing Drive** (*Agenda noted as South Ping*)
 - **Sponsor / Presenter:** Carl Long (Property Owner).
 - **Deliberation Summary:** Long stated he repaired the front porch and installed four windows, but faced issues with squatters breaking in, prompting him to re-board windows temporarily. Utilities are active. Long plans to bring in a crew to finish siding and windows.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 60 days with a required progress inspection prior to the next hearing).
- **00:50:58 Rehab Order 24: 326 West 6th Street**
 - **Sponsor / Presenter:** Diana Case (Resident / Tenant).
 - **Deliberation Summary:** Case reported that a contractor has been working daily to finish remaining repairs. Staff confirmed that a progress inspection had been completed.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 30 days, noting the owner can call for a final inspection if completed early to avoid a hearing appearance).
- **00:53:02 Rehab Order 25: 10001 East 29th Street**
 - **Sponsor / Presenter:** Heather McKibben (Representative, MFAM Group / Auto Business).
 - **Deliberation Summary:** McKibben reported hiring mechanics, removing 15 vehicles to scrap, selling 11, and clearing tires. City staff noted approximately 325 to 350 vehicles remain on the lot, creating a zoning violation for an unzoned salvage yard. Building repairs are near completion, pending a final fire department inspection. Board emphasized the need to accelerate vehicle removal (target of 50/month net reduction).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 30 days, requiring a final inspection including the fire department and removal of at least 50 vehicles).
- **01:01:22 Rehab Order 29: 426-428 West Howard Street**
 - **Sponsor / Presenter:** Tiarra Winters (Property Owner).
 - **Deliberation Summary:** Winters reported trash was cleared from the carriage house and yard using a provided dumpster, and plans to install fencing and front landscaping. Electrician estimates for the carriage house were high (\$4,000),

prompting a re-evaluation of scope. Board offered to connect Winters with a neighboring property investor.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved by Voice Vote (Continued for 60 days).
- **01:05:08 Rehab Order 32: 725 North Jefferson Street**
 - **Sponsor / Presenter:** Cleave Gregory (Property Owner) / Steve Couch (Contractor).
(Note: Addressed later in meeting at [01:14:22](#)).
 - **Deliberation Summary:** Gregory reported owner-occupying the home since 1980 and working with his son to repair a section of the roof over the back kitchen. Board staff noted a homeowner rehab program is available for full roof repairs if desired.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 30 days).
- **01:05:13 Rehab Order 33: 2022 South Jefferson Street**
 - **Sponsor / Presenter:** Steve Couch (Contractor).
 - **Deliberation Summary:** Couch reported the owner purchased the home ~3 months ago, installed a new roof, replaced windows, stripped old siding and drywall, and plans to install new vinyl siding and complete interior renovations with a budget of \$75,000. Electrical permits are pending.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 90 days to January with a required inspection).
- **01:07:58 Rehab Order 36: 4611 South Madison Street**
 - **Sponsor / Presenter:** Matthew Billington (Representative, MFAM Group).
 - **Deliberation Summary:** Billington reported an inspection was completed on October 3rd. Exterior trash has been cleared. The owner is coordinating with attorney John Madison to file an eviction against a remaining uncooperative tenant before interior repairs can proceed.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:**
 - Trash order released: Passed Unanimously by Voice Vote.
 - Case continuance: Approved by Voice Vote (Continued for 90 days).
- **01:09:59 Rehab Order 37: 4613 South Madison Street**
 - **Sponsor / Presenter:** Matthew Billington (Representative, MFAM Group).
 - **Deliberation Summary:** Billington reported trash around the property and inside the garage has been cleared, and an inspection was completed. Repairs include front porch roof leaks and broken windows. Future use (sale or rental) is under evaluation.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 90 days).
- **01:17:36 Rehab Order 39: 2234 West Memorial Drive**

- **Sponsor / Presenter:** Chandon Shaha (Property Owner / Professor at IU School of Medicine).
- **Deliberation Summary:** Shaha reported completing most inspection punch-list items (GFI outlets, bathtub caulking, drywall patching). Regarding roof repairs, insurance denied coverage, so Shaha purchased shingles at his own expense and hired roofers to replace the roof. Shaha defended his landlord record against prior tenant complaints.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved by Voice Vote (Continued for 30 days with a required inspection).
- **01:27:38 Rehab Order 26: 4305 West Burton Drive**
 - **Sponsor / Presenter:** James Merchant (Property Owner).
 - **Deliberation Summary:** Merchant reported replacing damaged exterior sheeting on the garage and selecting garage doors. Merchant cited time constraints due to heavy overtime at a full-time job. Building permits expired and require renewal; framing inspection status was discussed.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued to January, assessing a \$150 fine for failure to obtain a progress inspection, and ordering initial framing inspection and permit review).
- **01:34:58 Rehab Order 44: 1132 North Warwick Avenue**
 - **Sponsor / Presenter:** Property Owner / Representative.
 - **Deliberation Summary:** Reported that grocery carts, whiteboard, and general driveway debris have been removed. Minor yard items remain. The owner requested an inspection to obtain approval before proceeding with garage painting.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 30 days, ordering an inspection prior to the next hearing; trash order not yet released).
- **01:42:15 Demolition / Enforcement Item 19: 3705 South Madison Street (Southway Plaza)**
 - **Sponsor / Presenter:** City Staff / Legal Counsel (Aubrey Christrist / Richard Rawlings).
 - **Deliberation Summary:** Legal counsel noted a procedural defect: notice was served to the property owner at a tax address in New Jersey rather than the registered agent (located in South Bend) as required for potential litigation. Counsel advised rescinding a previously assessed \$5,000 civil penalty and declaring an emergency action under IC 36-7-9-9 due to immediate safety hazards (separated roof membranes/parapets, unsecure doors). The board discussed future receivership or demolition options.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:**

- Motion to rescind the September \$5,000 civil penalty: Approved by Voice Vote.
- Motion to declare an emergency action under IC 36-7-9-9: Approved by Voice Vote. Staff directed to tag, secure, and clean trash under emergency powers while restarting formal notice to the registered agent for future proceedings.

5. Open Public Comment / Citizen Forum

(Note: General citizen forum comments were integrated directly into specific agenda item hearings throughout the docket rather than held as a separate standalone session at the conclusion.)

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Staff reviewed upcoming inspection schedules and notification protocols for corporate registered agents.
 - **Adjournment:** Upon a motion duly made and seconded, the meeting was adjourned by voice vote at 02:02:55.
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